

25PSCV01801 25PSCV01801

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Case Number: 25PSCV01801 Hearing Date: September 24, 2026 Dept: H

Avila, et al. v.

Benavides, et al.,

Case No. 25PSCV01801

ORDER ON

DEMURRER

Defendant

Celia Ruiz's Demurrer to Plaintiffs' Complaint is SUSTAINED, with 20 days' leave to amend, in part (i.e., as to the fourth cause of action), and otherwise OVERRULED.

Background

Plaintiffs

Eric Avila ("Avila"), Joanna Morales ("Joanna"), and Yicenia Morales ("Yicenia") (collectively, "Plaintiffs") allege as follows:

Plaintiffs were residential

tenants of 1760 Puente Avenue, Baldwin Park, California ("Subject Property"). Defendant Celia Ruiz ("Ruiz") owned and managed the Subject Property from November 18, 1999 through March 6, 2025. Ruiz demanded Plaintiffs vacate the Subject Property at least twelve times between February 1, 2024, and November 1, 2024. Ruiz first demanded Plaintiffs vacate for a sale and subsequently so that she could move into the Subject Property.

Defendant David Benavides ("Benavides"), acting as Ruiz's real estate agent, called Yicenia nearly every day between September 7, 2024, to September 20, 2024, to harass Plaintiffs into moving out. Throughout Plaintiffs' tenancy,

there were ongoing habitability issues, including a broken garage door, inoperable heating and cooling systems, faulty electricity, inadequate ventilation and bathroom leaks, excessive moisture and water-damaged cabinets. Ruiz unlawfully increased the rent of the Subject Property on August 15, 2022, and March 15, 2024.

On

May 15, 2025, Plaintiffs filed the operative complaint, alleging causes of action against Benavides, Ruiz, Majesty One Properties, Inc. (collectively, “Defendants”), and Does 1 through 10 for eight causes of action, including, among others, negligence, wrongful eviction, breach of contract, nuisance, and trespass.

A

Post-Mediation Status Conference / Case Management Conference is scheduled for September 24, 2026.

Legal

Standard

The grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civ. Proc., § 430.30, subd. (a); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) Concerning the legal sufficiency of a pleading, the sole issue on demurrer is whether the facts pleaded, if true, state a valid cause of action – i.e., if the complaint pleaded facts that would entitle the plaintiff to relief. (*LiMandri v. Judkins* (1997) 52 Cal.App.4th 326, 339.)

A general demurrer admits

the truth of all factual, material allegations properly pled in the challenged pleading, regardless of possible difficulties of proof. (*Blank, supra*, 39 Cal.3d at p. 318.) Thus, no matter how unlikely or improbable, plaintiff’s allegations must be accepted as true for the purpose of ruling on the demurrer. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) Nevertheless, this rule does not apply to allegations expressing mere conclusions of law, or allegations contradicted by the exhibits to the complaint or by matters of which judicial notice may be taken. (*Vance v. Villa Park Mobilehome Estates* (1995) 36 Cal.App.4th 698,

709.) A general demurrer does not admit contentions, deductions, or conclusions of fact or law alleged in the complaint; facts impossible in law; or allegations contrary to facts of which a court may take judicial

notice. (Blank, supra, 39 Cal.3d at p. 318.)

Pursuant to Code of Civil

Procedure section 430.10, subdivisions (e) and (f), the party against whom a complaint has been filed may object by demurrer to the pleading on the grounds that it does not state facts sufficient to constitute a cause of action and/or is uncertain, respectively. It is an abuse of discretion to sustain a demurrer if there is a reasonable probability that the defect can be cured by amendment. (Schifando v. City of Los Angeles (2003) 31 Cal.4th 1074, 1082, as modified (Dec. 23, 2003).)

When a demurrer is

sustained or a motion to strike is granted, the Court determines whether there is a reasonable possibility that the defect can be cured by amendment. (Blank, supra, 39 Cal.3d at p. 318.) When a plaintiff "has pleaded the general set of facts upon which his cause of action is based," the court should give the plaintiff an opportunity to amend his complaint, since plaintiff should not "be deprived of his right to maintain his action on the ground that his pleadings were defective for lack of particulars." (Reed v. Norman (1957) 152 Cal.App.2d 892, 900.)

Discussion

Ruiz demurs,

pursuant to Code of Civil Procedure section 430.10, subdivision (e), to Plaintiffs' fourth and sixth causes of action, on the basis that they both fail to state facts sufficient to constitute causes of action. Next, Ruiz demurs, per subsection (f), to the first, fourth and fifth causes of action on the basis of uncertainty. Finally, Ruiz demurs, per subsection (g), to the second through fourth causes of action on the basis that it "cannot be ascertained from the pleading whether the contract is written, is oral, or is implied by conduct."

Uncertainty

Again,

Ruiz demurs to the first, fourth, and fifth (i.e., for Negligence, Breach of Contract and Nuisance, respectively) causes of action on the grounds they are uncertain. Demurrers on the grounds of uncertainty, however, are disfavored and should be sustained only where the pleading is so incomprehensible that the defendant cannot reasonably

respond. (A.J. Fistes Corp. v. GDL
Best Contractors, Inc. (2019) 38 Cal. App. 5th 677, 695.)

Here, Plaintiffs'
allegations are sufficiently clear to show Plaintiffs seek to hold Defendant
liable for negligence, breach of contract, and nuisance. (See Compl., ¶¶ 40-48,
63-78.) The first, fourth, and fifth causes of action are not uncertain on
their face. Therefore, Defendant's demurrer is overruled as to the first,
fourth, and fifth causes of action on this ground.

Contract-Based Claims

Next,
Ruiz demurs to the second, third, and fourth (i.e., for Wrongful Eviction,
Constructive Eviction and Breach of Contract, respectively) causes of action on
the grounds that, while they appear to be founded upon a contract, it cannot be
determined from the pleading whether the contract was written, oral, or
implied. (Mot., at p. 5.)

As
pled, the complaint alleges the second and third causes of action are based on
statute and tort claims, not a contract. Plaintiffs allege Defendants
wrongfully recovered possession of the Subject Property by demanding Plaintiffs
vacate without just cause, pursuant to Civil Code section 1946.2. (Compl., ¶
50.) Plaintiffs further allege defendants owe a duty of care as owners,
managers, and/or agents and breached that duty by violating their right to
quiet enjoyment and by failing to maintain the Subject Property in a habitable
condition. (Compl., ¶ 58.)

Accordingly,
Ruiz's demurrer as to the second and third causes of action is overruled on
these grounds.

That
said, Plaintiffs' fourth cause of action is based on a contract. Plaintiffs
allege that they were residential tenants of the Subject Property from
September 15, 2018, to November 20, 2024; that the residential lease agreement
contained an implied warranty of habitability and an implied covenant of quiet
enjoyment; and that defendants substantially breached the implied contracts.

(Compl., ¶¶ 1, 64-66.)

Plaintiffs

have not stated whether the lease was written, oral, or implied by conduct. Accordingly, Ruiz's demurrer as to the fourth cause of action is sustained with 20 days' leave to amend.

Failure

to State Causes of Action

Lastly,

Ruiz demurs to the fourth and sixth (i.e., for Breach of Contract and Trespass, respectively) causes of action on the ground that they both fail to allege facts sufficient to state a cause of action. The Court has already sustained the demurrer as to the fourth cause of action on subdivision (g) grounds; as such, the Court's below analysis pertains only to the sixth cause of action.

To set

forth a cause of action for trespass, Plaintiffs must allege: (1) Plaintiffs' lawful possession or right to possession of real property; (2) Ruiz's wrongful, intentional, reckless, or negligent act of trespass on the property; (3) Plaintiffs did not give permission for the entry or scope of permission was exceeded; and (4) damage to Plaintiffs caused by the trespass. (Ralphs Grocery Co. v. Victory Consultants, Inc. (2017) 17 Cal.App.5th 245, 262.)

Ruiz

argues there are no allegations that Ruiz entered any real property over which Plaintiffs had ownership or control. (Mot., p. 7.)

In

opposition, Plaintiffs argue that a residential tenant has a sufficient possessory interest in leased premises to maintain an action for trespass and that the Complaint expressly alleges facts to support a cause of action for trespass. (Opp., p. 6.)

The

Complaint alleges that, while Plaintiffs leased and possessed the property, Defendants intentionally, recklessly, or negligently caused excessive moisture, water, and water damage to enter the Subject Property, that Plaintiffs did not consent,

and that Plaintiffs suffered harm. (Compl., ¶¶ 79-85.) These allegations are sufficient to state a cause of action for trespass. (Martin Marietta Corp. v. Ins. Co. of N. Am. (1995) 40 Cal. App. 4th 1113 at 1132 [observing that “trespass and nuisance claims may include wrongful entry or invasion by pollutants”]; Cassinos v. Union Oil Co. (1993) 14 Cal.App.4th 1770, 1778 [“[C]ausing subsurface migration of fluids into a mineral estate without consent constitutes a trespass.”].)

Ruiz’s demurrer
to the sixth cause of action is overruled.